

HOUSE BILL 2246

By Hurt

AN ACT to amend Tennessee Code Annotated, Title 63
and Title 68, relative to stem cell therapies.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 63, Chapter 6, Part 2, is amended by
adding the following as a new section:

(a) As used in this section:

(1) "Human cells, tissues, or cellular or tissue-based products":

(A) Means articles containing or consisting of human cells or
tissues that are intended for implantation, transplantation, infusion, or
transfer into a human recipient; and

(B) Does not include:

(i) Vascularized human organs for transplantation;

(ii) Whole blood, blood components, or blood derivative
products;

(iii) Secreted or extracted human products, such as milk,
collagen, and cell factors, other than semen;

(iv) Minimally manipulated bone marrow for homologous
use and not combined with another article other than water,
crystalloids, or a sterilizing, preserving, or storage agent, if the
addition of the agent does not raise new clinical safety concerns
with respect to the bone marrow;

(v) Ancillary products used in the manufacture of human
cells, tissues, or cellular or tissue-based products;

- (vi) Cells, tissues, and organs derived from an animal;
- (vii) In vitro diagnostic products; and
- (viii) Blood vessels recovered with an organ that is intended for use in organ transplantation and clearly labeled "For use in organ transplantation only";

(2) "Minimally manipulated" means:

(A) For structural tissue, processing that does not alter the original relevant characteristics of the tissue relating to the tissue's utility for reconstruction, repair, or replacement; and

(B) For cells or nonstructural tissues, processing that does not alter the relevant biological characteristics of cells or tissues;

(3) "Physician" means a person licensed pursuant to chapter 6 or 9 of this title; and

(4) "Stem cell therapy":

(A) Means a treatment involving the use of afterbirth placental perinatal stem cells or human cells, tissues, or cellular or tissue-based products, which complies with the regulatory requirements provided in this section; and

(B) Does not include treatment or research using human cells or tissues that were derived from a fetus or an embryo after an abortion.

(b)

(1) A physician may perform stem cell therapy that is not approved by the United States food and drug administration if the therapy is used for treatment or a procedure that is within the scope of practice for the physician and the therapy is related to orthopedics, wound care, or pain management.

(2) To ensure that the retrieval, manufacture, storage, and use of stem cells used for stem cell therapy meet the highest standard, stem cells used by a physician for stem cell therapy must:

(A) Be retrieved, manufactured, and stored in a facility that is registered and regulated by the United States food and drug administration;

(B) Be retrieved, manufactured, and stored in a facility that is certified or accredited by one (1) of the following entities:

(i) National Marrow Donor Program;

(ii) World Marrow Donor Association;

(iii) Association for the Advancement of Blood and Biotherapies; or

(iv) American Association of Tissue Banks; and

(C) Contain viable or live cells upon post-thaw analysis and be included in a post-thaw viability analysis report for the product lot which must be sent to the physician before use with the physician's patient.

(c) A physician performing stem cell therapy shall not obtain stem cells for a therapy from a facility engaging in the retrieval, manufacture, or storage of stem cells intended for human use, unless the facility maintains valid certification or accreditation as required by this section. Any contract or other agreement through which a physician obtains stem cells for a therapy from such a facility must include the following:

(1) A requirement that the facility provide all of the following information to the physician:

(A) The name and address of the facility;

(B) The certifying or accrediting organization;

(C) The type and scope of certification or accreditation;

(D) The effective and expiration dates of the certification or accreditation; and

(E) Any limitations or conditions imposed by the certifying or accrediting organization; and

(2) A requirement that the facility notify the physician within thirty (30) days after a change in certification or accreditation status, including renewal, suspension, revocation, or expiration.

(d) In the performance of a procedure using or purporting to use stem cells or products containing stem cells, the physician must use stem cell therapy products obtained from facilities that adhere to the applicable current good manufacturing practices for the collection, removal, processing, implantation, and transfer of stem cells, or products containing stem cells, pursuant to the federal Food, Drug, and Cosmetic Act (21 U.S.C. § 301 et seq.) and 21 CFR 1271.

(e)

(1) A physician who conducts stem cell therapy pursuant to this section must include the following in any form of advertisement:

THIS NOTICE MUST BE PROVIDED TO YOU UNDER TENNESSEE LAW. This physician performs one or more stem cell therapies that have not yet been approved by the United States Food and Drug Administration. You are encouraged to consult with your primary care provider before undergoing any stem cell therapy.

(2) The notice required under subdivision (e)(1) must be clearly legible and in a type size no smaller than the largest type size used in the advertisement.

(f)

(1) A physician who conducts stem cell therapy pursuant to this section must obtain a signed consent form from the patient before performing the stem cell therapy.

(2) The signed consent form must be signed by the patient or, if the patient is not legally competent, the patient's representative and must contain the following:

(A) The nature and character of the proposed treatment;

(B) A statement that the proposed stem cell therapy has not been approved by the United States food and drug administration;

(C) The anticipated results of the proposed treatment; and

(D) The recognized serious possible risks, complications, and anticipated benefits involved in the treatment and the recognized possible alternative forms of treatment, including nontreatment.

(g) This section does not apply to the following:

(1) A physician who has obtained approval for an investigational new drug or device from the United States food and drug administration for the use of human cells, tissues, or cellular or tissue-based products; or

(2) A physician who performs stem cell therapy under an employment or other contract on behalf of an institution certified or accredited by any of the following:

(A) The Foundation for the Accreditation of Cellular Therapy;

(B) The Blood and Marrow Transplant Clinical Trials Network;

(C) The Association for the Advancement of Blood and Biotherapies; or

(D) An entity with expertise in stem cell therapy as determined by the department.

(h) A violation of this section may subject the physician to disciplinary action by the physician's respective board.

(i) A physician commits a Class E felony who intentionally performs or actively participates in the following:

(1) Treatment or research using human cells or tissues derived from a fetus or an embryo after an abortion; or

(2) The sale, manufacture, or distribution of computer products created using human cells, tissues, or cellular or tissue-based products.

(j)

(1) The board of medical examiners is authorized to promulgate rules effectuate this section. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

(2) The board of osteopathic examination is authorized to promulgate rules to effectuate this section. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 2. For the purposes of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2026, the public welfare requiring it.